



Republic of the Philippines
Province of Sorsogon
MUNICIPALITY OF PRIETO DIAZ
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Office of the Sangguniang Bayan

EXCERPT FROM THE MINUTES OF THE REGULAR SESSION OF THE 12TH SANGGUNIANG BAYAN OF PRIETO DIAZ, SORSOGON HELD ON JULY 21, 2025 AT ITS SESSION HALL

PRESENT:

Hon. Avon D. Domalaon, MPA	Municipal Vice Mayor/Presiding Officer
Hon. Ryand D. Diño	Sangguniang Bayan Member
Hon. Vicente B. Bayoca	Sangguniang Bayan Member
Hon. Bienvenido D. Ayo, Jr.	Sangguniang Bayan Member
Hon. Joseph H. Yap, Jr.	Sangguniang Bayan Member
Hon. Alexander D. Destura	Sangguniang Bayan Member
Hon. Jo Madel D. Domalaon	Sangguniang Bayan Member
Hon. Juan D. Ebid	Sangguniang Bayan Member
Hon. Lilia D. Oliveres	Sangguniang Bayan Member
Hon. Antonio J. Emano, Jr.	LnB Pres./S. B. Member

ABSENT:

Hon. Rene Joseph D. Domasian	SKMF Pres. – on leave
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RESOLUTION NO. 131-2025

Introduced by the council

A RESOLUTION AUTHORIZING HONORABLE MAYOR, ROMEO D. DOMASIAN TO ENTER INTO A MEMORANDUM OF AGREEMENT (MOA) WITH THE EARLY CHILDHOOD CARE AND DEVELOPMENT (ECCD) COUNCIL, REPRESENTED BY ITS VICE-CHAIRPERSON AND EXECUTIVE DIRECTOR, DR. TERESITA G. INCIONG, FOR THE ESTABLISHMENT OF A MULTI-PURPOSE BUILDING (MPB) TO BE USED AS CHILD DEVELOPMENT CENTER (CDC) IN BARANGAY QUIDOLOG, PRIETO DIAZ, SORSOGON

WHEREAS, the Early Childhood Care and Development (ECCD) Council, a national government agency attached to the Department of the Interior and Local Government (DILG), is duly mandated in accordance with Republic Act 12199 (The ECCD System Act) to institutionalize an ECCD System that is comprehensive, integrative and sustainable that will involve multi-sectoral and interagency collaboration at the national and local levels to promote the optimum growth and development of Filipino children below five (5) years old;

WHEREAS, the ECCD Council through the initiative of the President of the Republic the Philippines intends to establish Multi-Purpose Buildings (MPBs) to be used as Child Development Centers (CDCs) in various centerless barangays nationwide;

WHEREAS, Barangay Quidolog, has been Identified as a recipient of this priority program of the President of the Philippines;

WHEREAS, the funding for the establishment of the CDC shall be released by the Department of Budget and Management (DBM) through the Local Government Support Fund - Financial Assistance (LGSF-FA) as per the Joint Circular Number 2 Series of 2025 between the Department of Budget and Management (DBM) and the Department of Education (DepEd);

WHEREAS, the amount of P 3,000,000.00 will be used to cover the construction of the CDC including the contents such as but not limited to learning materials, furniture and fixtures, and other center equipment;

WHEREAS, on motion of Hon. Juan Ebid, duly seconded by Hon. Antonio Emano, Jr.;

NOW, THEREFORE, be it as it is;

HEREBY RESOLVED, to authorize Honorable Mayor, Romeo D. Domasian to enter into a Memorandum of Agreement with the Early Childhood Care and Development (ECCD) Council, represented by its Vice-Chairperson And Executive Director, Dr. Teresita G. Inciong, for the establishment of a Multi-Purpose Building (MPB) to be used as Child Development Center (CDC) in Barangay Quidolog, Prieto Diaz, Sorsogon;

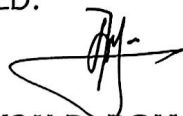
FINALLY RESOLVED, to transmit this resolution to Honorable Mayor, Romeo D. Domasian; copy furnished Ms. Betty Arines, MSWDO; Ms. Gemma Ferrer, Municipal Treasurer; Ms. Maribel Aldon, Municipal Accountant; Ms. Linda Lim, Municipal Budget Officer; and all concerned for their information and appropriate action;

APPROVED UNANIMOUSLY.

I HEREBY CERTIFY TO THE CORRECTNESS OF THE FOREGOING.


BERNADETTE R. ESPEÑA-YAO
Secretary to the Sangguniang Bayan

ATTESTED:


Hon. AVON D. DOMALAON, MPA
Municipal Vice Mayor/Presiding Officer

MEMORANDUM OF AGREEMENT

SO THE PUBLIC MAY KNOW:

This MEMORANDUM OF AGREEMENT (MOA) is executed in the City of Pasig, Philippines this _____ by and between:

The **EARLY CHILDHOOD CARE AND DEVELOPMENT (ECCD) COUNCIL**, a National Government Agency duly organized and existing under the laws of the Philippines with office address at the 4th Floor, Belvedere Tower, 15 San Miguel Avenue, Ortigas Center, Pasig City, represented by its **Vice Chairperson & Executive Director, TERESITA G. INCIONG, Ed.D., D.P.M.**, hereinafter referred to as **ECCD COUNCIL**;

-and-

The **Municipality of Prieto Diaz, Province of Sorsogon, a Local Government Unit (LGU)** duly organized and existing under the laws of the Philippines, with office address at Perlas, Prieto Diaz, Sorsogon represented by its **Mayor, Honorable Romeo D. Domasian**, hereinafter referred to as the **LGU**.

WITNESSETH:

WHEREAS, this memorandum of agreement (MOA) is in pursuance to the directive of President Ferdinand R. Marcos, Jr. to prioritize and provide funds to low-income Local Government Units (LGUs) for the establishment of Child Development Centers (CDCs) consistent with Republic Act (R.A.) No. 12116 or the FY 2025 General Appropriations Act, for the implementation of Multi-Purpose Building (MPB) projects to be used for CDCs;

WHEREAS, the CDC shall serve as a MPB for the implementation of integrated ECCD programs, which includes the delivery of the different modes, such as but not limited to, center-based and/or home-based ECCD programs that refer to the full range of health, nutrition, early education and social services development programs that provide for the basic holistic needs of young children from ages zero (0) to four (4) years; to promote their optimum growth and development; and to facilitate parenting and livelihood programs;

WHEREAS, the ECCD Council is duly mandated in accordance with R.A. No. 12199 or the Early Childhood Care and Development System Act of 2025 to institutionalize an ECCD System that is comprehensive, integrative and sustainable, even during times of emergency that involves multi-sectoral and interagency collaboration at the national and local levels in government; among service providers, families and communities; among the public and private sectors and non-government organizations (NGOs); and professional organizations and academic institutions;

WHEREAS, in pursuance to R.A. No. 7160 or the Local Government Code of 1991, Section 17, Basic Services and Facilities, the implementation of CDC programs was devolved to the LGUs in which this implementation shall follow the national standards;

WHEREAS, in pursuance to R.A. No. 12199, the LGUs shall ensure that there is at least one (1) CDC in every barangay;

WHEREAS, the ECCD Council, now attached to the Department of the Interior and Local Government, as provided by R.A. No. 12199, shall provide guidelines and standards to ensure compliance of the LGUs in the establishment of the Child Development Center;

WHEREAS, such standards with LGUs shall consist of an arrangement for the conduct of ECCD programs as above defined and the construction of a fully-furnished and fully-equipped CDC;

WHEREAS, the LGU shall be primarily responsible for the implementation of the ECCD System, including programs and services in its jurisdiction, and to support the establishment and operations of a CDC in its jurisdiction through the implementation of ECCD programs;

WHEREAS, the CDC building construction shall be funded through the Local Government Support Fund (LGSF), including CDC contents, such as furniture, fixtures and other accessories, manipulative learning materials, story books and posters, musical instruments, arts and crafts, hygiene, toilet and bath and equipment, playground facilities, and perimeter fence;

WHEREAS, the parties have agreed to undertake a cooperative endeavor for the establishment of a CDC within the LGU;

NOW, THEREFORE, the PARTIES agree on the following terms and conditions:

ARTICLE 1 GENERAL PRINCIPLES, SCOPE AND COVERAGE

1.1 The term **"Main Project"** refers to the establishment of MPB (CDC) as stipulated in the Joint Circular (JC) NO. 2, s. 2025 between the Department of Budget and Management (DBM) and the Department of Education (DepEd) to be located within the **Municipality of Prieto Diaz, Province of Sorsogon**, not exceeding the aggregate amount of **THREE MILLION PESOS (PHP3,000,000.00) per center** funded through the LGSF; (*ANNEX A: List of DBM Funded Barangay/s*)

1.1.1 CDC establishment includes the construction, provision of contents, playground equipment/facilities, and perimeter fence. (*ANNEX B: Detailed Project Cost*)

1.1.2 The beneficiary LGUs shall provide the land, with a minimum size of one hundred fifty square meters (150 sqm), where the CDCs will be constructed and shoulder the additional cost/s for the building construction, if any, as part of their counterpart obligation to complete the project

1.2 The term **"Supplemental Project"** may refer to site provision, preparation, and development (including demolition of an existing structure, if any), as a separate counterpart obligation by the LGU;

1.3 The Main Project shall be implemented strictly based on the following standard documents to be provided to the LGU by the ECCD Council: a) Plans/Drawings; and b) Technical specifications;

1.4 Procurement activities for the Main Project shall be in accordance with the provisions of R.A. No. 12009, otherwise known as the "Government Procurement Reform Act", its Revised Implementing Rules and Regulations and applicable issuances of the Government Procurement Policy Board;

1.5 The Main Project shall be implemented (procurement to completion) by the **LGU within two hundred fifty (250) calendar days** to be reckoned from the perfection of this MOA, or from the release of funding through LGSF after the perfection of this MOA. Project extensions and/or suspensions whenever necessary shall be subject to submission by the LGU of justifications and other documents;

1.6 The parties shall at all times take all necessary action to cooperate with each other, and perform their respective duties and responsibilities using best practice professional and technical standards to achieve the objectives of this MOA;

ARTICLE 2 FINANCING AGREEMENT

- 2.1 The Main Project shall be financed by the LGSF. The additional cost/s for the project completion beyond the budgetary allocation, if any, as well as costs for the Implementation of the Supplemental Project, shall be financed by the LGU as its counterpart obligation;
- 2.2 In addition, the LGU shall fund the costs of operation, maintenance, and repairs of the CDC, including payment of its personnel, utilities, and other monthly operating expenses ;
- 2.3 The LGU shall hire a **Child Development Teacher/Worker (CDT/W)** who will manage the operations of the CDC, preferably with a permanent plantilla item.
- 2.4 The LGU shall submit reports on fund utilization and status of implementation, following applicable COA and DBM issuances and procedures.
- 2.5 Any unused funds shall be returned to the National Treasury within 30 days of project completion or MOA termination.

ARTICLE 3 WORKING ARRANGEMENTS AND PROCEDURES

For the efficient and successful implementation of this MOA, the **PARTIES** agree to undertake the following:

- 3.1 **DUTIES AND RESPONSIBILITIES OF ECCD COUNCIL.** The **ECCD Council** shall:
- 3.1.1 Provide the LGU with the standard plans/drawings and technical specifications of the CDC;
 - 3.1.2 Monitor the implementation of the Project to ensure compliance with the standard plans/drawings and technical specifications, and the provisions of this agreement; and
 - 3.1.3 Provide the CDT/W with proper training and provide regular technical assistance to help ensure the successful implementation of ECCD programs and services in the CDC.
- 3.2 **DUTIES AND RESPONSIBILITIES OF THE LGU.** The **LGU** shall:
- 3.2.1 Provide a Main Project site with a minimum lot area of *One Hundred Fifty (150) square meters*, with any of the following proof of ownership:
 - 3.2.1.1 Original Certificate of Title/Transfer Certificate of Title
 - 3.2.1.2 Deed of Donation/Deed of Usufruct
 - 3.2.1.3 Tax Declaration in the name of the LGU
 - 3.2.2 Ensure that the Main Project is undertaken in accordance with the ECCD Council's CDC Standard plans and technical drawings, technical specifications, and completion period specified in section 1.5 of this MOA;
 - 3.2.3 Undertake the procurement of the Main Project in accordance with Republic Act 12009, otherwise known as the "New Government Procurement Act", its Revised Implementing Rules and Regulations, and applicable issuances of the Government Procurement Policy Board;
 - 3.2.4 Provide and prioritize the budgetary allocation for the counterpart funding to complete the Supplemental Project and/or to cover the additional costs for the project completion beyond the budgetary allocation;
 - 3.2.5 Allow regular monitoring of the Main and Supplemental Projects by ECCD Council, and comply with any request for correction of any adverse finding during the inspection;
 - 3.2.6 At substantial completion of the construction works, the **LGU** shall conduct a joint punch listing and final inspection with a technical representative from the ECCD Council;

3.2.7 The LGU must submit pertinent justification documents to substantiate any request for time extension and/or work suspension for any unavoidable circumstances, subject to ECCD Council's concurrence;

3.2.8 The LGU shall be compliant with all the necessary financial documentations in accordance with DBM guidelines and government accounting and auditing rules and regulations;

3.2.9 Support the continuous implementation and operation of the CDC by providing funds for the repair and maintenance, such as but not limited to, electricity and water connection/ supply, security, and other annual and monthly operating expenses upon the completion of the Main Project; and

3.2.10 Provide a CDT/W based on the qualification standards set by the ECCD Council and in accordance with applicable laws and policies.

ARTICLE 4 SUPPLEMENTS

This MOA, when necessary, shall be supplemented by terms of reference, letter of agreement, and other addenda that describe specifically the activities to be carried out or items required.

ARTICLE 5 AMENDMENTS

The parties may, by mutual consent, add, delete, or amend this MOA or any part hereof, taking into consideration the DBM-DepEd Joint Circular No. 2, s. 2025, and other applicable laws, rules, and regulations. All other parties concerned shall be notified/informed of such changes, revisions, or amendments.

ARTICLE 6 DISPUTE RESOLUTION

In the unlikely event that differences arise concerning this MOA or any undertaking relating to this MOA, the parties agree to negotiate in good faith to settle the differences, and if no settlement is reached, to submit the issues for mediation;

6.1 Parties shall first attempt resolution through direct negotiation within 30 days of the dispute arising;

6.2 If negotiation fails, disputes shall be submitted to mediation under R.A. No. 9285, or the Alternative Dispute Resolution Act (RA 9285); and

6.3 Unresolved disputes may be submitted to arbitration under Philippine Arbitration Law (RA 9285).

ARTICLE 7 PENALTIES AND SANCTIONS

7.1 Construction of the CDC not in accordance with the standard design and specifications and without ECCD Council's approval shall be subjected to rectification/corrective works at the expense of the LGU;

7.2 Failure to maintain standards may result in suspension of future funding and requirement for corrective action at LGU expense; and

7.3 Any misuse or malversation of funds shall be subject to criminal and administrative sanctions under R.A. No. 3019, as amended, otherwise known as the Anti-Graft and Corrupt Practices Act, and other applicable laws.

ARTICLE 8 TERMINATION

8.1 This MOA may be terminated for breach of material provisions, failure to secure required permits, or budget realignment.

8.2 The termination process shall commence with a 60-day written notice required with an opportunity to cure defects.

8.3 Completed portions shall be turned over to the national government if the LGU defaults.

ARTICLE 9 EFFECTIVITY

This MOA shall take effect on the date the parties affix their signature and shall remain valid until the completion of its purpose unless mutually revoked by the parties.

SIGNED on _____, in Pasig City, Philippines

EARLY CHILDHOOD CARE AND DEVELOPMENT COUNCIL

By:

TERESITA G. INCIONG, Ed.D, DPM
Vice Chairperson and Executive Director

LGU OF PRIETO DIAZ, SORSOGON

By:

HON. ROMEO D. DOMASIAN
Municipal Mayor

SIGNED IN THE PRESENCE OF:

Witness

BETTY G. ARINES
Municipal Social Welfare and Development Officer

ACKNOWLEDGEMENT

Republic of the Philippines)
Pasig City) S.S.

In Pasig City, Philippines, this _____, personally appeared before me:

Name	Identification Documents	Date/Place Issued
TERESITA G. INCIONG, ED.D, DPM	ECCDC ID No. 10-1001	March 3, 2014/ Pasig City
HON. ROMEO D. DOMASIAN	Driver's License No. E05-99-017672	March 1, 2022/ Sorsogon

all known to me to be the same persons who executed the foregoing instrument and they acknowledge to me that the same is of their own free and voluntary act and deed of the Office they respectively represent.

NOTARY

Doc No. _____:
Page No. _____:
Book No. _____:
Series of 2025